

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

UNITED STATES DISTRICT COURT

for the

NORTHERN District of FLORIDAPENSACOLA Division

DEBRA NELSON

Case No. 3:25-cv-01447-MCR-ZCB*Plaintiff(s)*Jury Trial: (check one) ☒ Yes ☐ NoAmentum Government Services Parent Holdings LLC, CLARENCE XANDER,
HEATHER GUNN, JANICE HUGHES, DAKOTA THOMAS,
ELIAS VELASQUEZ and YUSEF ABDUL-JAMI*Defendant(s)*

COMPLAINT FOR EMPLOYMENT DISCRIMINATION

I. The Parties to This Complaint

A. The Plaintiff(s)

Provide the information below for each plaintiff named in the complaint. Attach additional pages if needed.

Name Debra Nelson

Street Address

City and County

State and Zip Code

Telephone Number

E-mail Address

B. The Defendant(s)

Provide the information below for each defendant named in the complaint, whether the defendant is an individual, a government agency, an organization, or a corporation. For an individual defendant, include the person's job or title (if known). Attach additional pages if needed.

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

Defendant No. 1

Name	Amentum Government Services Parent Holdings LLC
Job or Title <i>(if known)</i>	Employer
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6250
E-mail Address <i>(if known)</i>	janice.hughes@amentum.com

Defendant No. 2

Name	Clarence Xander
Job or Title <i>(if known)</i>	Site Manager
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6258
E-mail Address <i>(if known)</i>	Clarence.Xander@amentum.com

Defendant No. 3

Name	Heather Gunn
Job or Title <i>(if known)</i>	Business Manager
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6266
E-mail Address <i>(if known)</i>	Heather.Gunn@amentum.com

Defendant No. 4

Name	Ja'nice Hughes
Job or Title <i>(if known)</i>	Human Resource Generalist
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6250
E-mail Address <i>(if known)</i>	janice.hughes@amentum.com

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

Defendant No. 5

Name	Dakota Thomas
Job or Title <i>(if known)</i>	Maintenance Supervisor
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	928-919-4987
E-mail Address <i>(if known)</i>	dakota.thomas@amentum.com

Defendant No. 6

Name	Elias Velasquez
Job or Title <i>(if known)</i>	Maintenance Supervisor
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-816-9093
E-mail Address <i>(if known)</i>	elias.velasquez@amentum.com

Defendant No. 7

Name	Yusef Abdul-Jami
Job or Title <i>(if known)</i>	NDI Technician
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	210-618-5689
E-mail Address <i>(if known)</i>	yusef.abdul-jami@amentum.com

Defendant No.

Name	
Job or Title <i>(if known)</i>	
Street Address	
City and County	
State and Zip Code	
Telephone Number	
E-mail Address <i>(if known)</i>	

C. Place of Employment

The address at which I sought employment or was employed by the defendant(s) is

Name	Amentum
Street Address	NAS Whiting Field 7701 USS Enterprise Street Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6250

II. Basis for Jurisdiction

This action is brought for discrimination in employment pursuant to *(check all that apply)*:

☒ Title VII of the Civil Rights Act of 1964, as codified, 42 U.S.C. §§ 2000e to 2000e-17 (race, color, gender, religion, national origin).

(Note: In order to bring suit in federal district court under Title VII, you must first obtain a Notice of Right to Sue letter from the Equal Employment Opportunity Commission.)

☐ Age Discrimination in Employment Act of 1967, as codified, 29 U.S.C. §§ 621 to 634.

(Note: In order to bring suit in federal district court under the Age Discrimination in Employment Act, you must first file a charge with the Equal Employment Opportunity Commission.)

☐ Americans with Disabilities Act of 1990, as codified, 42 U.S.C. §§ 12112 to 12117.

(Note: In order to bring suit in federal district court under the Americans with Disabilities Act, you must first obtain a Notice of Right to Sue letter from the Equal Employment Opportunity Commission.)

☒ Other federal law *(specify the federal law)*:

Gender discrimination, Retaliation, Hostile Work Environment,

☒ Relevant state law *(specify, if known)*:

Civil Conspiracy, Negligent Supervision, Defamation, Whistleblower Retaliation,

☐ Relevant city or county law *(specify, if known)*:

III. Statement of Claim

See attached Statement of Facts and Statement of Claims, incorporated herein

A. The discriminatory conduct of which I complain in this action includes *(check all that apply)*:

- ☐ Failure to hire me.
- ☐ Termination of my employment.
- ☐ Failure to promote me.
- ☐ Failure to accommodate my disability.
- ☐ Unequal terms and conditions of my employment.
- ☒ Retaliation.
- ☒ Other acts *(specify)*: Discrimination based on sex

(Note: Only those grounds raised in the charge filed with the Equal Employment Opportunity Commission can be considered by the federal district court under the federal employment discrimination statutes.)

B. It is my best recollection that the alleged discriminatory acts occurred on date(s)

5/28/2025 to 8/12/2025

C. I believe that defendant(s) *(check one)*:

- ☒ is/are still committing these acts against me.
- ☐ is/are not still committing these acts against me.

D. Defendant(s) discriminated against me based on my *(check all that apply and explain)*:

- ☐ race _____
- ☐ color _____
- ☒ gender/sex Female
- ☐ religion _____
- ☐ national origin _____
- ☐ age *(year of birth)* _____ *(only when asserting a claim of age discrimination.)*
- ☐ disability or perceived disability *(specify disability)* _____

E. The facts of my case are as follows. Attach additional pages if needed.

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

See attached Statement of Facts and Statement of Claims, incorporated herein

(Note: As additional support for the facts of your claim, you may attach to this complaint a copy of your charge filed with the Equal Employment Opportunity Commission, or the charge filed with the relevant state or city human rights division.)

IV. Exhaustion of Federal Administrative Remedies

- A. It is my best recollection that I filed a charge with the Equal Employment Opportunity Commission or my Equal Employment Opportunity counselor regarding the defendant's alleged discriminatory conduct on (date)

August 12, 2025

- B. The Equal Employment Opportunity Commission (check one):



has not issued a Notice of Right to Sue letter.



issued a Notice of Right to Sue letter, which I received on (date) August 14, 2025

(Note: Attach a copy of the Notice of Right to Sue letter from the Equal Employment Opportunity Commission to this complaint.)

- C. Only litigants alleging age discrimination must answer this question.

Since filing my charge of age discrimination with the Equal Employment Opportunity Commission regarding the defendant's alleged discriminatory conduct (check one):



60 days or more have elapsed.



less than 60 days have elapsed.

V. Relief

State briefly and precisely what damages or other relief the plaintiff asks the court to order. Do not make legal arguments. Include any basis for claiming that the wrongs alleged are continuing at the present time. Include the amounts of any actual damages claimed for the acts alleged and the basis for these amounts. Include any punitive or exemplary damages claimed, the amounts, and the reasons you claim you are entitled to actual or punitive money damages.

As a direct and proximate result of the Defendants' unlawful actions, Plaintiff has suffered lost wages, emotional distress, reputational harm, and other compensatory damages. Lost wages include, but are not limited to:

- First 30-day leave (May 30 - July 2, 2025): $\$44.66/\text{hour} \times 160 \text{ hours} = \$7,145.60$
- Second 30-day leave (August 9 - September 19, 2025): $\$45.46/\text{hour} \times 160 \text{ hours} = \$7,273.60$
- Total wage loss to date: $\$14,419.20$ (excluding lost overtime, benefits, and retirement contributions).

VI. Certification and Closing

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this complaint: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Rule 11.

A. For Parties Without an Attorney

I agree to provide the Clerk's Office with any changes to my address where case-related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Date of signing: September 4, 2025

Signature of Plaintiff

Debra Nelson

Printed Name of Plaintiff

Debra Nelson

B. For Attorneys

Date of signing: _____

Signature of Attorney

Printed Name of Attorney

Bar Number

Name of Law Firm

Street Address

State and Zip Code

Telephone Number

E-mail Address

Exhibit A



U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

Miami District Office
100 SE 2nd St, Suite 1500
Miami, FL 33131
(800) 669-4000
Website: www.eeoc.gov

DETERMINATION AND NOTICE OF RIGHTS

(This Notice replaces EEOC FORMS 161, 161-A & 161-B)

Issued On: 08/14/2025

To: Ms. DEBRA E. NELSON

Charge No: 510-2025-08373

EEOC Representative and email: RODNEY MOZARD
INVESTIGATOR
RODNEY.MOZARD@EEOC.GOV

DETERMINATION AND NOTICE OF RIGHTS

The EEOC issues the following determination: The EEOC will not proceed further with its investigation and makes no determination about whether further investigation would establish violations of the statute. This does not mean the claims have no merit. This determination does not certify that the respondent is in compliance with the statutes. The EEOC makes no finding as to the merits of any other issues that might be construed as having been raised by this charge.

NOTICE OF YOUR RIGHT TO SUE

This is official notice that the EEOC has dismissed your charge and has issued you notice of your right to sue the respondent(s) on this charge. If you choose to file a lawsuit against the respondent(s) on this charge under federal law in federal or state court, **your lawsuit must be filed WITHIN 90 DAYS of your receipt of EEOC's official notice of dismissal.** You should keep a record of the date you received the EEOC's official notice of dismissal. Your right to sue based on this charge will be lost if you do not file a lawsuit in court within 90 days. (The time limit for filing a lawsuit based on a claim under state law may be different.)

If you file a lawsuit based on this charge, please sign-in to the EEOC Public Portal and upload the court complaint to charge 510-2025-08373

On behalf of the Commission,

Digitally Signed By: Evangeline Hawthorne
08/14/2025

Evangeline Hawthorne
Director

FILED USDC FLND PN
SEP 9 '25 AM 11:41

AR



amentum

The intranet-posted version of this guidance is the document of record.

WRITTEN REPRIMAND

August 6, 2025

To: Debra Nelson

Employee ID: 621036

From: Dakota Thomas, Aircraft Maintenance Supervisor

Subject: WRITTEN REPRIMAND

CC: Personnel File

Current Violation(s) / Cause:

The purpose of this letter is to issue you a written reprimand for violation of Offense 5c *Failing to report absence within ½ hour of start of work shift*, Offense 19 *Insubordination* and Offense 26 *Deliberate falsifications of facts to management or any other form of dishonesty*.

Circumstances of Violations:

On 30 JUL 2025, you requested leave through supervisor Elias Velasquez for 31 JUL 2025 and 1 AUG 2025 via form "HR-313 Leaves of Absence – Paid and Unpaid". Upon receipt, Mr. Velasquez inquired as to whether there would be issues taking the leave since you did not have the required amount of SKA/VAC time to cover the time off. You advised Velasquez that you spoke with upstairs, and that there were no issues with taking the leave. Velasquez refused to approve the leave and contacted the HR and Business Manager on 30 JUL 2025 to verify the status of your leave. The Business Manager and HR did inform your supervisor Elias Velasquez that you did not speak to them nor was your leave of absence approved by them. Therefore, the leave was never approved by a supervisor, and you were not authorized to take the leave that was taken.

On 30 July 25, you spoke with the Site payroll administrator and advised her that you had an approved leave chit when you inquired how to code your timesheet since you did not have enough leave to cover the time requested. Payroll advised you how to code the time with the information given. The information you provided to payroll was a false statement in that you did not have an approved leave chit. Your timecard has since been amended to reflect the appropriate code of Unpaid/Unauthorized Time.

You did not follow the established leave policy process. You did not follow the directions of your supervisor which was for you to speak with HR or the Business Manager to discuss your request for leave or a Leave of Absence. You proceeded to take off work on 31 JUL 2025 and 1 AUG 2025 without authorization and coded your timecard as Unpaid/Authorized Time.

You are reminded that Amentum and the Union has established procedures, pertaining to taking time off from work: Vacation, Sick Time, Personal Leave of Absence, Short Term Disability, Federal Medical Leave of absence. This information is provided to you in the Union CBA Handbook and the Amentum Paid and Unpaid leave policy. (located on the company intranet).

This letter will remain in your personnel file for six months from the date of issuance, in accordance with our Collective Bargaining Agreement Bridge Agreement, expiring March 31, 2026.

Employee Acknowledgment

My signature on this form indicates that I have discussed this concern identified above with my manager, received a copy of this written warning, and acknowledge its contents. It does not necessarily indicate that I agree with its contents. I understand that immediate, sustained improvement is required in the area(s) expressed above, or further disciplinary action, up to and

Internal Information
Ref: HR-314 Disciplinary Process

HR-314-F-2 Written Warning HR-314-F-2 | Version No. 2
Issue Date: 1/31/2021 | Review/Revision Date: 4/23/2024

EXHIBIT B**amentum**

The intranet-posted version of this guidance is the document of record.

including termination of employment, may occur. I further acknowledge that this document will be included in my personnel file.

Employee Signature

Date

8/6/2025

Manager Signature

Date

8/6/2025

If applicable:

James Carney

Witness Name

Witness Signature

8-6-25

Date

WRITTEN REPRIMAND

Should you wish to do so, you may respond to this Written Reprimand in writing within five (5) days of receipt of this letter. If you do so, your response will be included with this Written Reprimand and added to your personnel file.

I refuse to sign because I was never told to go to HR. I talked to Tionne and I was told that I had to charge my time if I didn't have enough time to use ^{the} unauthorized code. At no time was I told to go to HR. I disagree with this write up which is retaliatory.

EXHIBIT C

Written Rebuttal – August 6, 2025 Disciplinary Write-up

This is my formal rebuttal to the August 6, 2025 write-up for 'unauthorized time'.

In July, I took bereavement (10–15) and unpaid (16–21) leave coordinated with Payroll only. HR approval was never required or mentioned.

The sudden change in protocol and write-up without attempt to contact me shows retaliation. I request the reprimand be removed or this rebuttal be attached.

Sincerely,
Debra Nelson

EXHIBIT D**Timeline of Events**

May 28 – I was called into a meeting in the equipment room at 2:25pm 5 minutes before my shift ended. I told Elias that my shift was ending and he could talk to Yusef who was standing right next to him. In the meeting was the second shift Maintenance Supervisor, Elias Valasquez, Union Representative, Jimmy Murphy; first shift Maintenance Supervisor, Dakota Thomas, NDI Technician, Yusef Abdul-Jami and myself. In the meeting I was being questioned about the contents of locker 2, I said that Yusef is standing right there and pointed at him. Elias said “you don’t have to have an attitude and you don’t need this fucking shit in here”. I told Elias you don’t need to curse at me and he had no right to be cursing me. The other men that were in the room said nothing. Elias dismissed what I said and continued to ask me if I needed to keep certain parts in the locker. I continued to say Yusef is right here why aren’t you asking him because he was responsible for locker 2. Elias said that we could keep the spare parts in the Tool Room. I said that’s not how NDI works. We usually keep spare parts along with our other equipment. Elias then said that we can just keep these extra probes in the Tool Room and Dakota agreed. I then said “I would consult with the NDI Level III if I were you”. Elias said I’m not doing nothing we just going to put those probes in the Tool Room and Dakota agreed. After the meeting I immediately went over to HR to report the Supervisor cursing at me.

May 29 – In a meeting with James Carnley, Chief Union Steward; Janice Hughes, HR Generalist; Heather Gunn, Business Manager; Clarence Xander, Site Manager; Dakota Thomas, Maintenance Supervisor and myself. In the meeting we discussed Elias cursing at me. I discussed the locker issue and Yusef not keeping up with the process control in the NDI program. I told them that process control has not been in compliance since the previous NDI Technician left. I told them that airplanes inspected without the process control being done prior to the inspection could get the company fined. I was told by Clarence Xander that I was not to text Yusef anymore. I was told by Clarence that my response to Yusef was aggressive, and I was told I had an attitude. There was absolutely no discipline or accountability for Yusef not pulling his share of the workload. I left that meeting knowing that management was covering for Yusef and somehow, I was made the bad guy in this situation. I was not supported in that meeting and in the workload situation.

May 30 – My leave of absence began. On May 30th I tried to log in to Costpoint to sign my time for the week. I was locked out and Payroll already went home. I would have to contact Payroll on Monday to get my password reset.

June 2 – I contacted the Payroll Generalist to reset my password. When I went into my time I noticed times were moved around. I asked Tionne about it and she said that I had PTO. I said we talked about this last week and you said I didn’t have any PTO left. Tionne said Heather Gunn signed my time on Friday May 30th. I told Tionne she didn’t have to do that and I didn’t give her permission to go into my time. Heather moved my hours around from the previous week. I asked

EXHIBIT D

Tionne to reopen my time so I could put the correct hours where they belong. I believe Heather was trying to set me up for stealing time.

July 2 - When I returned from my leave of absence I had a meeting with James Carnley, Chief Union Steward; Heather Gunn, Business Manager; Clarence Xander, Site Manager; Dakota Thomas, Supervisor and myself. In this meeting Clarence stated he didn't know I was coming back on that day. I clearly stated in my leave of absence paperwork and to Corporate that I would be coming back on July 2nd after all discrepancies within the NDI program were corrected. When I got back the broken probe was still in the kit and there were a few other items that were not in compliance. In the meeting I asked Clarence about the statement that I cursed at a Supervisor and Clarence said "it didn't matter". I asked him what was the issue and why wouldn't he tell me what I was accused of saying and Clarence said again "it didn't matter". I told Clarence that was defamation. Clarence then said he wanted to end the meeting.

July 24 - I did a 6300 hour eddy current inspection on drain holes on aircraft 037 over in the Phase hangar. I signed the job off after the inspection in the Phase hangar.

July 25 - I messaged Dakota letting him know I was running late. Dakota then asked what time I thought I would get to work and I said about 2:55pm. Dakota then said that we will meet on Tuesday July 29th at 2pm. I asked what this meeting was about and Dakota said about a work order that was signed off and he had some questions. I asked what work order and Dakota said it would be discussed on Tuesday.

When I got to work, I logged on to see if I had any work in the que. I noticed the aircraft and job I did the night before was still in the que. When I opened up the job the corrective action was blank. So I went to Phase to see what the issue was. I spoke with the 2nd shift Lead, Tom Beauman and asked what was up with aircraft 037 and Tom said that the aircraft was not ready for the 6300 hour inspection I did the night before because it wasn't defueled. Tom said there were panels that also needed to be removed, and I was supposed to inspect the drain holes from the inside after all that was done. I said I didn't realize that and I asked when it will be ready. Tom said that wouldn't happen that night because there was other maintenance that needed to be completed. Tom said that when he saw that I had signed it off he realized that was a mistake because he did that same thing last month (June) with the other NDI Tech Yusef. Tom said when the aircraft is ready they would call NDI. I went back to Hangar 100 and told Shop Lead 100-200, Phillips the status on aircraft 037.

July 29 - At the 2pm meeting in attendance was Supervisor, Dakota Thomas; Business Manager, Heather Gunn; HR Representative, Janice Hughes; Elias Valasquez, 2nd shift Supervisor; Union Chief Steward, James Carnley and me. So, Dakota started the meeting asking what happened with the 6300 hour inspection. I said, "so this is what we're doing"? I said the same thing happened last month with Yusef. Did you call the Business Manager and the HR Representative for him? Dakota said he didn't know anything about that. I repeated what the 2nd shift Phase Lead Tom Beauman told me. Dakota said "well I'll have to look into that". Dakota didn't sound like he believed me.

EXHIBIT D

Which has been a consistent pattern since May when I reported Yusef for not helping with the locker. That meeting was supposed to be Dakota's opportunity to write me up to try and create a paper trail. Since he didn't know that I knew that Yusef did the same thing he was unable to accomplish that goal.

August 4 – I returned to work and saw that Yusef put a note in the turnover log stating that the cable that I said was broken worked before I used it and it worked after I used it. This is false because I checked that cable and used other probes to verify the issue. Even with other probes the cable still did not work. I 100% stand behind what I said, **the cable was broken**. Yusef in order to deflect to get the attention off of himself and try to discredit me, tells Supervision the cable worked, and they believed him. Yusef had a bag with cables in them that I personally saw. After I reported him for not helping with the locker, he said he didn't know what happened to the bag.

When I brought the issue up with Elias and told him that Yusef switched that cable out with the broken one and was trying to discredit me. Elias immediately jumped to Yusef's defense, which is not uncommon, and said that the cable worked. I told Elias that the cable did not work and that Yusef switched it out. Elias then says to me that I have an attitude, he has to talk to me like I'm a child, then he says go ahead and do the report cause I'm going to look stupid and everybody has a problem with me. I told Elias that he is starting to piss me off because y'all always act like I don't know what I'm talking about. This is the incredibly hostile environment that I am subjected to. Everything I say is dismissed if it's contrary to my male counterpart. The gender-based characterizations used to minimize my concerns all of this creates a hostile work environment.

August 5 - After repeatedly asking since May 30, I was finally informed by Corporate that I had been accused of saying, "Who the fuck do you think you are." I **categorically deny making this statement**. While I may curse in casual conversation, I have never cursed **at a supervisor** or used language in that tone or phrasing. That statement is **not consistent with how I speak** — it does not reflect my vernacular, and I would never address management in such a manner. The phrasing sounds more like something a Caucasian person would say, I am Black and the language attributed to me feels intentionally mischaracterized. Despite my repeated efforts to clarify this issue, Corporate **refused to tell me who made the accusation**, leaving me defenseless against a false and discriminatory claim. This concealment has added to my emotional distress and demonstrates continued bad faith by management.

August 6 - Dakota Thomas along with the HR Rep Janice Hughes and the Business Manager Heather Gunn issued me a written reprimand after the 2 complaints that I filed on August 4th & 5th. The reprimand was for an unauthorized absence. I requested time off for a court date on July 31st. I told my Supervisor Elias Valasquez on July 29th that I didn't have enough time to be off for both days and Elias said I'll approve the time that you have off but you will have to go upstairs. I went on July 30th and talked to the Payroll Specialist Tionne. I told her that I needed to be off Thursday and Friday July 31st and August 1st but I didn't have enough time. She said I would need to use my personal time and then use unauthorized leave. I said ok because I've done it many times

EXHIBIT D

before. However, in the meeting on August 6th I was told that Elias did not approve my leave and that I told Tionne my time was authorized. At no point did anyone tell me that I had to talk to the HR Rep to take unauthorized time off because I didn't have to do it before. If my leave was not approved as Elias said then why was that not communicated to me verbally, by text or email. I was being set up to fabricate a write up.

Janice <Janice.Hughes@amentum.com>

Subject: FW: PTO

Good Afternoon Ms. Nelson,

Your request for the additional four (4) days of LWO is **approved**. I am sorry to hear about your loss. Please take this time to grieve. Should you need anything, please let us know.

Respectfully,

Heather Gunn

Business Manager I

Aviation Solutions | Critical Missions

O: 850-484-6266

C: 850-736-5147

7701 USS Enterprise, Milton, FL 32570



From: Xander, Clarence <Clarence.Xander@amentum.com>

Sent: Tuesday, July 15, 2025 1:14 PM

To: Thomas, Tionne <Tionne.Thomas@amentum.com>

Cc: Gunn, Heather <Heather.Gunn@amentum.com>; Hughes, Janice <Janice.Hughes@amentum.com>

Subject: RE: PTO

Tionne,

Approved.

Clarence

From: Thomas, Tionne <Tionne.Thomas@amentum.com>

Sent: Tuesday, July 15, 2025 8:51 AM

To: Xander, Clarence <Clarence.Xander@amentum.com>

Cc: Gunn, Heather <Heather.Gunn@amentum.com>; Hughes, Janice <Janice.Hughes@amentum.com>

Subject: FW: PTO

Clarence,

Please see below. Debra Nelson is out on Bereavement leave for her paternal grandmother and would like you use the additional days of LWO.

Thank you,

Tionne Thomas

Office Administrator Senior

Office: 850.484.6257

Cell: 850.736.3666

Tionne.Thomas@amentum.com

7701 USS Enterprise, Milton, FL 32570

amentum.com



EXHIBIT E

Important Notice: This message may contain Amentum Privileged/Proprietary information. If this email is not intended for you, and you are not responsible for the delivery of this email message to the addressee, do not keep, copy or deliver this email message to anyone. Please destroy this email in its entirety and notify the sender by reply email. Your cooperation is appreciated.

From: Debra Nelson <>
Sent: Tuesday, July 15, 2025 8:27 AM
To: Thomas, Tionne <Tionne.Thomas@amentum.com>
Subject: [EXTERNAL] Re: PTO

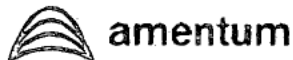
Good morning. I would like to take additional unpaid bereavement leave and return on July 22, 2025. So that would be 4 more days

Get [Outlook for iOS](#)

From: Thomas, Tionne <Tionne.Thomas@amentum.com>
Sent: Monday, July 14, 2025 11:04:33 AM
To: Debra Nelson <denelson62@outlook.com>
Subject: RE: PTO

Received, thank you!

Thank you,
Tionne Thomas
Office Administrator Senior
Office: 850.484.6257
Cell: 850.736.3666
Tionne.Thomas@amentum.com
7701 USS Enterprise, Milton, FL 32570
amentum.com



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From: Debra Nelson <>
Sent: Monday, July 14, 2025 9:48 AM
To: Thomas, Tionne <Tionne.Thomas@amentum.com>
Subject: [EXTERNAL] Re: PTO

Attached is a copy of my grandmother's obituary. That is my father's (David Lee Williams) mother

**amentum****EXHIBIT F**

Date: August 13, 2025
To: Debra Nelson
From: Janice Hughes
Subject: Request for Medical Leave of Absence

Per our discussion, you have requested a medical leave of absence. In accordance with the Company's Medical Leave Policy HR-316, employees are required to contact The Hartford to file a Family and Medical Leave and/or STD claim.

I've attached a copy of the Medical Leave procedure and Amentum FMLA & Disability Claim flyer for reference. To file a claim, you will need to contact The Hartford at 877-877-6043 or complete an online form via [HTTPS://ABILITYADVANTAGE.THEHARTFORD.COM](https://ABILITYADVANTAGE.THEHARTFORD.COM).

Amentum has received notification that The Hartford has created a Short-Term Disability claim and a Leave of Absence claim for you, Debra Nelson, as of 08/06/2025. The Hartford will contact your treating physician to obtain the needed information to either approve or deny your request for Short-term Disability and a medical leave of absence.

If your claim is approved, you will be required to provide periodic updates to me on your return-to-work status.

If your claim is denied, the time that you have taken during the approval process will be changed from authorized leave to unauthorized leave. You will be required to return to work immediately. If you choose not to return to work, disciplinary actions may be taken.

You are tentatively approved for a Medical Leave of Absence beginning Friday, August 8, 2025, pending receipt of the final determination on your claim by The Hartford.

Upon receipt of the determination from The Hartford, I will be sending you additional communication outlining your leave status. Should you have any questions, please do not hesitate to contact me at Janice.Hughes@amentum.com or 850-484-6250

Regards,

**Janice
Hughes**

Digitally signed by Janice Hughes
DN: cn=Janice Hughes,
o=Amentum/744, ou=Critical Mission
email=Janice.Hughes@amentum.com
Date: 2025.08.13 11:54:46 -0500

Janice Hughes
Human Resource Generalist

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

V.

Amentum Government Services Parent Holdings LLC,

CLARENCE XANDER, JANICE HUGHES,

HEATHER GUNN, DAKOTA THOMAS,

ELIAS VELASQUEZ, and

YUSEF ABDUL-JAMI,

Defendants,

C.A. No.: 3:25-cv-01447-MCR-ZCB

AMENDED COMPLAINT AND DEMAND FOR JURY TRIAL

JURISDICTION AND VENUE

1. This is an action for damages and equitable relief under Title VII of the Civil Rights Act of 1964, 42 U.S.C. §2000e et seq., the Florida Whistleblower Act, and Florida common law.
2. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 (federal question) and supplemental jurisdiction over the state law claims pursuant to 28 U.S.C. §1367.
3. Venue is proper in the Northern District of Florida, Pensacola Division, under 28 U.S.C. §1391(b), as the events giving rise to these claims occurred in Santa Rosa County, Florida.

AB

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PARTIES

4. **Plaintiff DEBRA NELSON** is a resident of Florida and was employed by Defendants as an NDI Technician at NAS Whiting Field in Santa Rosa County, Florida.

5. **Defendant AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC** is a Foreign Limited Liability Company registered to do business in Florida, with its Registered Agent being C T Corporation System, 1200 South Pine Island Road, Plantation, FL 33324. Its sole member is Amentum Holdings LLC, located at 4800 Westfields Blvd, Suite 400, Chantilly, VA 20151.

6. **Defendant CLARENCE XANDER** was at all relevant times the Site Manager for Amentum at NAS Whiting Field.

7. **Defendant JANICE HUGHES** was at all relevant times the Human Resources representative for Amentum at NAS Whiting Field.

8. **Defendant HEATHER GUNN** was at all relevant times the Business Manager for Amentum at NAS Whiting Field.

9. **Defendant DAKOTA THOMAS** was at all relevant times a Maintenance Supervisor for Amentum at NAS Whiting Field.

10. **Defendant ELIAS VALASQUEZ** was at all relevant times a Maintenance Supervisor for Amentum at NAS Whiting Field.

11. **Defendant YUSEF ABDUL-JAMI** was at all relevant times an NDI Technician for Amentum at NAS Whiting Field.

FACTUAL ALLEGATIONS

1. Plaintiff Debra Nelson was employed by Amentum as an NDI Technician at NAS Whiting Field in Santa Rosa County, Milton, Florida, and consistently performed her duties in a satisfactory manner.
2. On March 27, 2025, during a program NDI audit, Plaintiff reported necessary audit corrections to her supervisor, which were addressed.
3. Shortly thereafter, Plaintiff complained that her male coworker, Defendant Yusef Abdul-Jami, refused to assist her with a work-related locker issue. She documented this in text messages and provided them to management.
4. Between May 2025 and August 2025, Plaintiff reported repeated noncompliance by Defendant Abdul-Jami with inspection procedures. Management ignored her reports, protected Abdul-Jami, and began labeling Plaintiff as "aggressive" and as having an "attitude." (See Exhibit D)

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5. On May 29, 2025, during a work meeting, Defendant Elias Valasquez cursed at Plaintiff. Plaintiff was later falsely accused of responding with profanity, a claim that was withheld from her until August 5, 2025.
6. On August 5, 2025, corporate management disclosed this false allegation for the first time.
7. On August 6, 2025—the day after Plaintiff informed corporate management that she intended to sue—Defendant Dakota Thomas issued a Written Reprimand falsely alleging Plaintiff took “unauthorized leave” on July 31 and August 1, 2025. (See Exhibit B)
8. In reality, on July 15, 2025, Plaintiff had requested unpaid bereavement leave via email to Payroll Specialist Tionne Thomas and received confirmation of receipt. (See Exhibit E)
9. The Written Reprimand further alleged Plaintiff told Valasquez her leave was approved by HR and management, which was false. Plaintiff explained she lacked accrued time and was seeking unpaid leave approval.
10. The reprimand also alleged Plaintiff failed to call in, yet no supervisor contacted her, suggesting a deliberate setup.
11. Plaintiff immediately submitted a written rebuttal identifying the retaliatory nature of the discipline and citing prior occasions when unpaid leave had been granted without HR approval. (See Exhibit C)
12. As a result of Defendants’ actions, Plaintiff was forced to take two separate 30-day leaves of absence, resulting in lost wages and emotional distress.
13. On August 13, 2025, Defendant Janice Hughes sent Plaintiff a letter warning that if her short-term disability claim was denied, her leave would be deemed “unauthorized” and subject to discipline. Plaintiff viewed this as threatening and retaliatory. (See Exhibit F)

II. STATEMENT OF CLAIMS

Count I – Gender Discrimination (Title VII)

Defendant Abdul-Jami refused to assist Plaintiff and repeatedly violated procedures without discipline. In contrast, Plaintiff was criticized and labeled “aggressive” when she raised compliance concerns. Defendants’ treatment of Plaintiff was disparate based on her gender.

Count II – Retaliation (Title VII)

Defendant Thomas issued a false Written Reprimand on August 6, 2025, one day after Plaintiff told corporate she intended to sue. Defendant Hughes sent a retaliatory letter on August 13, 2025, threatening discipline tied to Plaintiff’s medical leave. These actions

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were taken in retaliation for Plaintiff's protected activity of reporting violations and discrimination.

Count III – Hostile Work Environment (Title VII)

Defendant Valasquez cursed at Plaintiff in a meeting. Defendants tolerated repeated harassment, false accusations, and derogatory treatment, creating a hostile and intimidating workplace for Plaintiff.

Count IV – Whistleblower Retaliation (Florida Whistleblower Act)

Plaintiff reported FAA compliance violations. Instead of addressing them, Defendants ignored her reports, targeted her with a false Written Reprimand, and threatened her with disciplinary action, in violation of Florida law.

Count V – Defamation (Florida Common Law)

Defendant Valasquez falsely claimed Plaintiff used profanity in a meeting. Defendant Thomas published a Written Reprimand stating Plaintiff took unauthorized leave. These false statements were shared within the workplace and harmed Plaintiff's reputation.

Count VI – Negligent Supervision (Florida Common Law)

Defendant Amentum failed to properly supervise managers and employees, including Xander, Hughes, Thomas, Valasquez, and Abdul-Jami, who engaged in harassment, retaliation, and defamation against Plaintiff.

Count VII – Civil Conspiracy (Florida Common Law)

Defendants collectively acted to fabricate allegations, including the unauthorized leave charge and the profanity accusation, in order to retaliate against Plaintiff and shield a male coworker from accountability.

Count VIII – Intentional Infliction of Emotional Distress (Florida Common Law)

Defendants, including Thomas, Hughes, Valasquez, and Abdul-Jami, engaged in extreme and outrageous conduct by issuing false discipline, making false accusations, and sending threatening letters. This conduct was intentional and caused Plaintiff severe emotional distress, requiring two medical leaves of absence.

DAMAGES

Plaintiff has suffered lost wages, emotional distress, reputational harm, and other compensatory damages. Lost wages include:

- First 30-day leave (May 30 – July 2, 2025) at \$44.66/hour × 160 hours = **\$7,145.60**
- Second 30-day leave (August 9 – September 19, 2025) at \$45.46/hour × 160 hours = **\$7,273.60**

Total wage loss to date: **\$14,419.20** (excluding lost overtime, benefits, and retirement contributions)

Plaintiff also seeks punitive damages under Title VII and Florida law, as well as

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attorney's fees and costs.

PRAYER FOR RELIEF

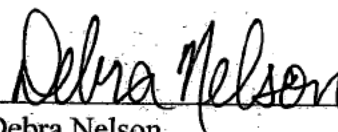
WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in her favor and against Defendants for:

- a. Back pay, front pay, and lost benefits;
- b. Compensatory damages for emotional distress and reputational harm;
- c. Punitive damages as allowed by law;
- d. Attorney's fees and costs;
- e. Pre- and post-judgment interest; and
- f. All other relief this Court deems just and proper.

JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Respectfully submitted 4th of September, 2025,



Debra Nelson
Plaintiff, Pro Se

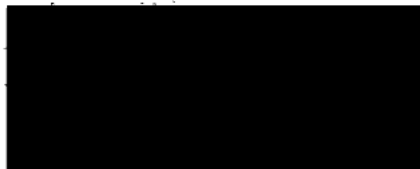


EXHIBIT INDEX

Exhibit A – EEOC Right-to-Sue Letter

Exhibit B – Written Reprimand dated August 6, 2025

Exhibit C – Plaintiff's Rebuttal to Written Reprimand dated August 6, 2025

Exhibit D – Timeline of Events

Exhibit E – Email to Payroll Specialist Requesting Unpaid Bereavement Leave – July 15, 2025

Exhibit F – August 13, 2025 HR Letter on Medical Leave

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

v.

Amentum Government Services Parent
Holdings LLC,

CLARENCE XANDER, JANICE HUGHES,

HEATHER GUNN, DAKOTA THOMAS,

ELIAS VELASQUEZ, and

YUSEF ABDUL-JAMI,

Defendants,

C.A. No.: 3:25-cv-01447-MCR-ZCB

AMENDED COMPLAINT

ATTACHMENT TO PRO SE FORM
STATEMENT OF FACTS AND CLAIMS

I. Statement of Facts

1. Plaintiff Debra Nelson began working for Amentum as an NDI Technician at NAS Whiting Field in Santa Rosa County, Florida, and consistently performed her duties in a satisfactory manner.
2. On March 27, 2025, during a program NDI audit, Plaintiff reported necessary audit corrections to her supervisor, Val Stephens, which were addressed.
3. Shortly after the audit, Plaintiff complained that her male coworker, Defendant Yusef Abdul-Jami, refused to assist her with a locker issue. She documented this in text messages and provided them to management.
4. From November 2024 through May 2025, Plaintiff reported repeated noncompliance by Defendant Abdul-Jami with process controls for inspections. Management ignored these reports, protected Abdul-Jami, and began labeling Plaintiff as "aggressive" and having an "attitude."
5. On or about May 29, 2025, during a work meeting, Defendant Elias Velasquez cursed at Plaintiff. Plaintiff was later falsely accused of responding with profanity. Management withheld this allegation from her until August 5, 2025.
6. On August 5, 2025, corporate management disclosed the false allegation for the first time.

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7. On August 6, 2025, the day after Plaintiff informed corporate that she intended to sue, Defendant Dakota Thomas issued a Written Reprimand alleging “unauthorized leave” for July 31–August 1, 2025.
8. Plaintiff had, on July 15, 2025, requested additional unpaid bereavement leave via email to Payroll Specialist Tionne Thomas and received confirmation of receipt. This disproved the accusation of unauthorized leave.
9. The Written Reprimand also falsely stated that Plaintiff told Defendant Velasquez her leave was approved by HR and management. In reality, Plaintiff told Velasquez she lacked accrued time and sought unpaid leave approval.
10. The reprimand further alleged that Plaintiff was absent without calling in, yet no one from supervision attempted to contact her, suggesting a deliberate setup.
11. Plaintiff immediately submitted a written rebuttal, identifying the retaliatory nature of the discipline and pointing out prior occasions when unpaid leave was allowed without HR approval.
12. As a result of these actions, Plaintiff was forced to take two separate 30-day leaves of absence, causing lost wages and emotional distress.
13. On August 13, 2025, Defendant Janice Hughes (HR) sent Plaintiff a letter stating that if her disability claim was denied, her leave would be deemed “unauthorized” and subject to discipline. Plaintiff viewed this as threatening and retaliatory.

II. Statement of Claims

Count I – Gender Discrimination (Title VII)

Defendants treated Plaintiff less favorably because she is female. Defendant Abdul-Jami refused to assist her, while male employees were not disciplined for noncompliance. Management labeled Plaintiff as “aggressive” for raising concerns, but did not apply those labels to male employees.

Count II – Retaliation (Title VII)

Defendants retaliated against Plaintiff for reporting safety violations and discrimination. Specifically, Defendant Thomas issued a false Written Reprimand on August 6, 2025, one day after Plaintiff told corporate she intended to sue. Defendant Hughes sent a retaliatory letter on August 13, 2025, threatening discipline regarding her leave.

Count III – Hostile Work Environment (Title VII)

Defendants’ conduct—including repeated false accusations, refusal to address misconduct, and derogatory treatment—created a hostile and intimidating workplace for Plaintiff. Defendant Velasquez cursed at Plaintiff in a meeting, and management tolerated ongoing harassment.

Count IV – Whistleblower Retaliation (Florida Whistleblower Act)

Plaintiff reported FAA compliance violations. Defendants ignored these reports and instead disciplined Plaintiff under false pretenses, including the August 6, 2025 Written Reprimand and Hughes’s August 13, 2025 letter.

Count V – Defamation (Florida Common Law)

Defendants, including Velasquez and Thomas, published false statements that Plaintiff used profanity in a meeting and took unauthorized leave. These statements harmed her professional reputation.

Count VI – Negligent Supervision (Florida Common Law)

Defendant Amentum failed to properly supervise its managers and employees (Xander, Hughes,

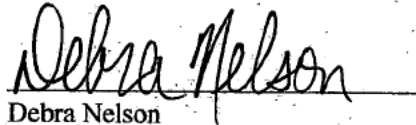
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Thomas, Velasquez, Abdul-Jami), who engaged in harassment, retaliation, and defamation against Plaintiff.

Count VII – Civil Conspiracy (Florida Common Law)

Defendants acted in concert to fabricate allegations, including the false leave accusation and profanity charge, in order to retaliate against Plaintiff and protect a male coworker from accountability.

Respectfully submitted 4th of September, 2025,



Debra Nelson

Plaintiff, Pro Se



EEOC No. 510-2025-08373 | FEPA No.

CHARGE OF DISCRIMINATION

Form 5 (06/24)

This form is affected by the Privacy Act of 1974.

See attached Privacy Act Statement and other information before completing this form.

CHARGE PRESENTED TO:

EEOC

Florida Commission On Human Relations

AGENCY CHARGE NO.

510-2025-08373

Name (indicate Mr., Ms., Mrs., Miss, Dr., Hon., Rev.): Ms. DEBRA E. NELSON

Phone No.: [REDACTED]

Year of Birth: [REDACTED]

Mailing Address: [REDACTED]
[REDACTED]

Named below is the Employer, Labor Organization, Employment Agency, Apprenticeship Committee, or State or Local Government Agency that I believe discriminated against me or others.

Name: Amentum

No. Employees, Members: 15 - 100 Employees

Phone No.: (270) 439-8430

Mailing Address: BUILDING 1429 BUILDING 1429

MILTON, FL 32570, UNITED STATES OF AMERICA

Name:

No. Employees, Members:

Phone No.:

Mailing Address:

DISCRIMINATION BASED ON:

Retaliation, Sex

DATE(S) DISCRIMINATION TOOK PLACE

Earliest: 05/28/2025

Latest: 08/12/2025

Continuing Action

THE PARTICULARS ARE:

I am a female; I am being discriminated against by the above-named employer because of my sex (female).

I am filing this complaint based on gender discrimination and retaliation. I was repeatedly treated unfairly by management after asserting myself in response to workplace mistreatment. I was expected to take on the responsibilities of a coworker who refused to participate in assigned duties. After asking about accountability for the locker project, I was pulled into a meeting with two White supervisors Elias Valasquez and Dakota Thomas, my coworker, Yusef Abdul-Jami, and a union representative, Jim Murphy where I was badgered, spoken to disrespectfully, and cursed at by the second shift Supervisor Elias Valasquez. When I stood up for myself, I was accused of being aggressive and having an attitude. When I brought up the fact that a supervisor cursed at me in a hostile and unprofessional manner, I asked the manager directly what would be done about it. The manager dismissed my concern and stated, "That doesn't matter right now." This response made it clear that my emotional safety and dignity were not priorities. Instead of addressing the supervisor's abusive conduct, the conversation turned to falsely accusing me of cursing also, which is false and defamatory.

These gendered labels were used to discredit my professionalism and silence my valid concerns. After I submitted the text messages to management, which clearly documented my coworker's refusal to complete assigned work and my repeated attempts to involve him. The Site Manager told me that I was no longer allowed to text my coworker. I believe this directive

EEOC No. 510-2025-08373 | FEPA No.

was retaliatory and designed to protect my coworker from further documentation of his neglect, rather than to resolve any interpersonal conflict or improve communication. It effectively punished me for providing valid evidence and further limited my ability to coordinate work-related tasks. This response shows a clear pattern of management suppressing my voice, protecting male coworkers from accountability, and creating an environment where I am penalized for following procedures, speaking up, and doing the work. The refusal to acknowledge or correct this mistreatment, paired with the continued disrespect and scapegoating I experienced, directly contributed to my decision to take a leave of absence effective May 30, 2025. I no longer felt safe, respected, or supported in this environment. I believe I am being targeted and retaliated against for asserting myself and asking for equal treatment. I have since taken a leave of absence, citing that the workplace is not a safe space for women.

I am seeking EEOC support to investigate this behavior and determine if my rights have been violated under Title VII. I took a leave of absence from June 30 - July 1, 2025, to make sure the noncompliant items in the NDT shop would be corrected by Yusef. When I returned on July 2, 2025, the items were not corrected. I had a meeting with the Site Manager, Clarence Xander; the Union Steward, James Carnly; Business Manager, Heather LNU; Supervisor, Dakota Thomas; and myself. In this meeting I told them that there were no corrections to the deficiencies that I disclosed. I also asked about the statement made by Clarence Xander that I cursed at a supervisor. I asked again what I was accused of saying and what was said. Clarence Xander again said it did not matter. He also told me that he disagreed with my feelings about the situation. Clarence Xander decided to end the meeting when I continued to ask about the defamatory statement.

I believe that I am being discriminated against because of my sex (female) and retaliated against in violation of Title VII of the Civil Rights Act of 1964, as amended, and all applicable State statutes.

EEOC No. 510-2025-08373 | FEPA No.

I want this charge filed with both the EEOC and the State or local Agency, if any. I will advise the agencies if I change my address or phone number and I will cooperate fully with them in the processing of my charge in accordance with their procedures.

I declare under penalty of perjury that the above is true and correct, and that I have read each page of this form.

Debra Nelson 8/12/2025
Charging Party Signature & Date

If a state or local Fair Employment Practices Agency (FEPA) requires notarization, you may need to sign the charge in the presence of a notary. If so, please do so here.

I swear or affirm that I have read the above charge and that it is true to the best of my knowledge, information, and belief.

Notarized Signature of Charging Party

Subscribed and sworn to before me this date:

Signature of Notary _____

Printed Name _____